

Tentative Rulings for August 28, 2026

Department PS1

To request oral argument, you must notify Judicial Secretary Carol Delfosse-Kidd at (760) 904-5722 and inform all other counsel no later than 4:30 p.m.

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2504065	BROWN VS POWERS	HEARING RE: MOTION TO COMPEL (FOR ORDER COMPELLING) FURTHER RESPONSES TO FORM INTERROGATORIES, AND FOR SANCTIONS BY PATRICK POWERS, PRESTON POWERS

Tentative Ruling: No tentative ruling. All discovery motions continued to 10.19.26.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2504065	BROWN VS POWERS	HEARING RE: MOTION TO COMPEL (FOR ORDER COMPELLING) FURTHER RESPONSES TO REQUESTS FOR ADMISSIONS, SET 1 AND FOR SANCTIONS BY PATRICK POWERS, PRESTON POWERS

Tentative Ruling: No tentative ruling. All discovery motions continued to 10.19.26.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2504065	BROWN VS POWERS	HEARING RE: MOTION TO COMPEL (FOR ORDER COMPELLING) FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET 1, AND FOR SANCTIONS BY PATRICK POWERS, PRESTON POWERS

Tentative Ruling: No tentative ruling. All discovery motions continued to 10.19.26.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2504065	BROWN VS POWERS	HEARING RE: MOTION TO COMPEL FOR ORDER COMPELLING) FURTHER RESPONSES TO SPECIAL INTERROGATORIES, AND FOR SANCTIONS BY PATRICK POWERS, PRESTON POWERS

Tentative Ruling: No tentative ruling. All discovery motions continued to 10.19.26.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2504065	BROWN VS POWERS	HEARING RE: DEMURRER ON 1ST AMENDED CROSS-COMPLAINT OF PATRICK POWERS

Tentative Ruling: No tentative ruling. All discovery motions continued to 10.19.26.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2504065	BROWN VS POWERS	HEARING RE: MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET 1, AND FOR SANCTIONS; MEMORANDUM OF POINTS AND AUTHORITIES; AND DECLARATION OF ERIC J. GUINAN

Tentative Ruling: No tentative ruling. All discovery motions continued to 10.19.26.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2504065	BROWN VS POWERS	HEARING RE: MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, AND FOR SANCTIONS; MEMORANDUM OF POINTS AND AUTHORITIES; AND DECLARATION OF ERIC J. GUINAN

Tentative Ruling: No tentative ruling. All discovery motions continued to 10.19.26.

8.

CASE #	CASE NAME	HEARING NAME
CVPS2504065	BROWN VS POWERS	HEARING RE: MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES, AND FOR SANCTIONS; MEMORANDUM OF POINTS AND AUTHORITIES; AND DECLARATION OF ERIC J. GUINAN

Tentative Ruling: No tentative ruling. All discovery motions continued to 10.19.26.

9.

CASE #	CASE NAME	HEARING NAME
PSC 1601655	DEBONNE VS DEBONNE	HEARING RE: MOTION TO QUASH PURPORTED DECEASED PLAINTIFF/JUDGMENT CREDITOR'S SUBPOENA

Tentative Ruling: The Enforcement of Judgment Law ("EJL," Code Civ. Proc., §§ 680.010-724.260) is "a comprehensive scheme governing the enforcement of judgments in California." [Citation.] (*California Costal Com. v. Allen* (2008) 167 Cal.App.4th 322, 326.) Under the EJL, the postjudgment procedure by which the judgment creditor discovers information directly from a judgment debtor to determine the debtor's assets through an examination process is set forth under Code of Civil Procedure section 708.110. (*Lee v. Swansboro Country Property Owners Assn* (2007) 151 Cal.App.4th 575, 581.) Section 708.110 provides in relevant part: "The judgment creditor may apply to the proper court for an order requiring the judgment debtor to appear before the court, or

before a referee appointed by the court, at a time and place specified in the order, to furnish information to aid in enforcement of the money judgment.” (Code Civ. Proc., § 708.110(a).) The judgment creditor must personally serve a copy of the order on the judgment debtor not less than 30 days before the date set for the examination. (Code Civ. Proc., § 708.110(c).)

“At the examination, the judgment creditor has the opportunity to inquire of the judgment debtor regarding the property the debtor has, or may acquire in the future, that may be available to satisfy the judgment. [Citations.] A judgment debtor examination is intended to allow the judgment creditor a wide scope of inquiry concerning property and business affairs of the judgment debtor.” (*Lee v. Swansboro Country Property Owners Assn*, *supra* 151 Cal.App.4th at 581.)

“In any proceeding under this article, the court may, on motion of the person to be examined or on its own motion, make such protective orders as justice may require.” (Code Civ. Proc., § 708.200.)

The permissible scope of a postjudgment examination is entirely set by statute. An order must be obtained from the Court and thereafter served upon the Judgment Debtor at least 30 days before the examination. Code Civ. Proc., § 708.110, subds., (a)&(c). Judgment Debtor attacks the validity of the order based on ground that no judgment creditor had capacity to seek an order because one of the parties was deceased on the date the Court issued the order. This argument is without merit.

First, Judgment Debtor’s contention that no party had capacity to seek an order for examination is incorrect. As to the individual deceased judgment creditor, the death of a plaintiff/judgment creditor does not mean the judgment cannot be enforced. The parties’ concede to the fact that Bernard Debonne died on June 03, 2025. “[I]t is well settled that death of the plaintiff after judgment in his favor and while such judgment stands does not abate the action or affect validity of judgment,” which “becomes part of estate of deceased judgment creditor....” (*Darter v. Magnussen* (1959) 172 Cal.App.2d 714, 719.) Therefore, “[a]fter the death of the judgment creditor, the judgment may be enforced as provided [under the Enforcement of Judgment Law], by the judgment creditor’s executor or administrator or successor in interest.” (Code Civ. Proc., § 686.010.) Here, Judgment Debtor provides no evidence to show that the deceased Judgment Creditor is without an executor or administrator or successor in interest which can act on behalf of the Judgment Creditor’s estate. The manner of administration or disposition of Bernard Debonne’s estate is not a matter before this Court.

Furthermore, the judgment award of \$2,009,683 was entered in favor of Bernard Jacques Debonne, both individually and as trustee of the Bernard J. Debonne Family Trust. A trust does not necessarily terminate upon the death of the original trustee. Despite the death of Bernad Jacques, the Bernard J. Debonne Family Trust may seek to enforce the judgment by way of a successor trustee. “[A] trust is not a person but rather a fiduciary relationship with respect to property. [Citation.]” (*Portico Management Group, LLC v. Harrison* (2011) 202 Cal.App.4th 464, 473, internal quotation omitted.) “Legal title to property owned by a trust is held by the trustee... [and] a... trust... is simply a collection of assets and liabilities. [Citation.]” (*Ibid.*, internal quotation omitted.) The trust “is not an entity separate from its trustee.” (*Ibid.*) Under the Probate Code, a “[t]rustee” includes an original, additional, or *successor trustee*, whether or not appointed or confirmed by a court.” (Prob. Code, § 84, italics added.) The definition of a trustee includes a “successor trustee,” whether or not appointed or confirmed by a court. (*Ibid.*) Here, Judgment Creditors present the declaration of Marc Kleiman (“Kleiman Decl.”) who declares under

penalty of perjury that he is the successor trustee of the Bernard J. Debonne Family Trust, now known as the BJD Trust dated 10/27/1997. (Kleiman Decl., ¶ 4.) Although Mr. Kleiman presents no documentary evidence of the fact of his succession as the successor trustee, Judgment Debtor presents no evidence to refute Mr. Kleiman's declaration as to his capacity as a successor trustee.

Furthermore, there are multiple Plaintiffs/Judgment Creditors who can seek an order requiring Judgment Debtor to appear for examination. Neither the application nor order specified that the examination relates to only one judgment creditor. Judgment Debtor points to no statutory language requiring that the order requiring examination must be specific to a single judgment creditor. Hence, any one of the Judgment Creditor can act on the order to proceed with the examination process. In her reply, Judgment Debtor cites to Corporation Code section 17708.07 to argue that the entity Judgment Creditors cannot enforce the order because a foreign limited liability company must be properly registered to transact intrastate business in this state to maintain an action or proceeding. In support of this claim, Judgment Debtor submits copies of the corporate Statement of Information filed regarding the two entity Judgment Creditors, Debonne Asset Management, LLC., and Debonne Property Management, Inc. and requests that the Court take judicial notice of these documents. Judgment Debtor's is denied. A Statement of Information is not evidence regarding the current corporate status of either of the entity Judgment Creditors. Not only is Judgment Debtor's argument unsupported by evidence, it is refuted by Judgment Creditors through the Kleiman declaration stating that he serves as the manager of Debonne Asset Management, LLC, and various officer positions for Debonne Property Management, Inc. (Kleiman Decl., ¶ 4.) He confirms neither of these entities are dissolved, merged, or otherwise affected by Mr. Debonne's death. (Id. at ¶ 5.)

Based on the foregoing, Judgment Debtor has presented no grounds for this Court to quash the order requiring Judgment Debtor's appearance for examination.

Defendant's Request for Judicial Notice DENIED.

Motion to Quash Judgment Creditor Subpoena DENIED.

Yann Debonne ordered to personally appear for Judgment Debtor Examination on 10.09.26, 8:30 a.m. for Judgment Debtor Examination.